Open Science and Digital Humanities: Ethical Challenges of Informed Consent in the Era of Transparency and Privacy

Melo, Jonas Ferrigolo
jonasferrigolo@gmail.com
University of Porto, Portugal

Rockembach, Moises
moises.rockembach@gmail.com
University of Coimbra, Portugal

Open science, by advocating for the free and accessible dissemination of data, studies, and methodologies, aims to foster collaboration, access, and knowledge dissemination (Schöpfel, 2014; Tmava, 2023; Whyte & Pryor, 2011). This vision is supported by documents establishing international standards to make science more transparent and globally accessible (Fecher & Friesike, 2014).

Transnational regulations, such as the European Charter for Researchers Ethical Principles (2005), and national frameworks, such as Brazil's CNS Resolution No. 510/16, protect research participants and emphasize free and informed consent. However, research participants frequently struggle to fully understand the future uses of their personal data. With the implementation of the General Data Protection Regulation (GDPR) in the European Union and Brazil's General Data Protection Law (LGPD), it has become essential for data subjects to explicitly authorize the collection and processing of their data (Melo, Rockembach & Silva, 2023), with informed consent being a cornerstone in ensuring transparency and control (Borgesius, 2015; Cheung, 2018; Corrigan, 2003; de Freitas Irizaga et al., 2018; Hornstein et al., 2015).

In collaborative projects, the collection and sharing of data are common practices, often creating tensions between transparency, privacy protection, and compliance with legal requirements. This gives rise to the research problem of this study: How can Digital Humanities projects balance open science transparency and data sharing with privacy and ethical/legal compliance? To address this question, this study aims to analyze how open science initiatives in the Digital Humanities field can implement ethical research practices that reconcile transparency and privacy principles.

This qualitative and comparative study examines the intersection of open science and data privacy ethics in the Digital Humanities, focusing on informed consent practices. The research explores ethical challenges and opportunities in Digital Humanities projects, proposing strategies such as unequivocal consent mechanisms, stakeholder engagement, and adaptive governance models. The goal is to foster ethical and inclusive practices that balance openness with individual rights in digital research.

This exploratory study investigates the relationships between open science principles and conceptual models of informed consent, as discussed in a previous study by Melo and Rockembach (2024), expanding the analysis to Digital Humanities contexts. Melo and Rockembach (2024) examined open science principles outlined in the Berlin Declaration on Open Access to Knowledge in the Sciences and Humanities, the Budapest Open Access Initiative, and the UNESCO Recommendation on Open Science, comparing them with conceptual models of informed consent proposed by Faden & Beauchamp (1986), Ahmed et al. (2020), Friedman et al. (2000), Mayne et al. (2016), Bossert & Strech (2017), and Bonnici West & Grima (2024).

Building upon this research, this article examines the ethical implications of handling personal data in open science projects, focusing on reconciling transparency and privacy in Digital Humanities initiatives in Brazil and Portugal, emphasizing legislative differences.

The projects "Documenting the COVID-19 Experience in Rio Grande do Sul" and "COVID Memory" were selected for their relevance in analyzing tensions between transparency, data sharing, and privacy in open science initiatives in the Digital Humanities. Both documents are historically significant events with profound social impact, promote open access, and feature a collaborative and interdisciplinary dimension. The geographic and regulatory diversity of Brazil and Portugal enables a comparative analysis under the LGPD and GDPR. Furthermore, their comprehensive methodologies – including forms, multimedia, and oral history interviews – enhance their representativeness in exploring informed consent and data governance practices, contributing to the objectives of this research.

The analysis focuses on the compliance of data processing with the GDPR and LGPD, as well as informed consent practices, address to identify tensions and convergences between open access principles and the protection of individual

rights. Analytical instruments rely on a qualitative and comparative approach. A document analysis of materials collected in the projects, including forms, multimedia, and oral history transcripts, identifies key elements related to informed consent practices, data governance, and stakeholder engagement. A comparative analysis between the two projects was then conducted to identify best practices and gaps in data governance and informed consent models. These instruments provide a basis for identifying strategies used in these projects regarding consent mechanisms, stakeholder engagement, and adaptive governance models to reconcile tensions between transparency and privacy assurance.

The analysis of these projects reveals varying perspectives on personal data management and informed consent practices in open science initiatives within the Digital Humanities. Both projects involve collecting sensitive data, such as personal accounts, images, and audio, to preserve collective memory regarding the COVID-19 pandemic. However, the approaches to ensuring transparency and compliance with data protection laws, such as the LGPD and GDPR, show significant differences.

For instance, in the Documenting the COVID-19 project, online forms and oral history interviews collect data directly from participants. Interviews included reading an explanatory statement and explicit consent requests, ensuring compliance with legal and ethical requirements. Conversely, at the Federal Institute of Rio Grande do Sul (IFRS) and the Museum of the History of Medicine, data collection occurred without the formal presentation of a public consent form, raising concerns about clarity and transparency in the process.

In contrast, the COVID Memory project, conducted by the Nova University of Lisbon, employs a more formalized consent approach, including a specific field for consent declaration during content submission. This consent explicitly pertains to collecting and processing personal data for scientific purposes, ensuring rights such as access, rectification, and deletion of data. While this model aligns more closely with legal requirements, it also raises questions about participants' understanding of terms and their rights, given the standardized acceptance format.

Both projects demonstrate significant efforts to reconcile transparency and data sharing with privacy protection while also highlighting challenges in implementing informed consent practices. In certain cases, institutional differences, such as the lack of consent formalization, underscore the need for improved methodologies and participant engagement. The comparative analysis suggests that greater standardization of consent practices and enhanced communication formats with participants could significantly improve legal compliance and build public trust in open science initiatives within the Digital Humanities.

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